

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

ANDRE GRAHAM,

Plaintiff,

-against-

NYPD DET. MOHAMMED RIOS, SHIELD NO. 5238;
NYPD DET. GUSTAVO ROSADO, SHIELD NO. 29004;
NYPD P.O. JOHN/JANE DOES # 1-10;
all of the above individual defendants,
including named are sued in their
individual and official capacities,

Defendants.

-----X

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
FEBRUARY 4, 2020



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONING LLP
Attorney for Plaintiffs
65 Broadway 715
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

NYPD DET. MOHAMMED RIOS, SHIELD NO 5238
NYPD DET GUSTAVO ROSADO, SHIELD NO. 29004
NYPD P.O. JOHN/JANE DOES # 1-10
Patrol Borough Manhattan North
151 W. 100th St., New York NY, 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

ANDRE GRAHAM,

Plaintiff, **VERIFIED COMPLAINT**

-against-

NYPD DET. MOHAMMED RIOS, SHIELD NO. 5238;
NYPD DET. GUSTAVO ROSADO, SHIELD NO.
29004; NYPD P.O. JOHN/JANE DOES # 1-10;
all of the above individual defendants,
including named are sued in their
individual and official capacities,

Index No: _____

Basis of Venue:

Location of incident: New
York County

Jury Trial Demanded

Defendants.

----- X

The Plaintiff, ANDRE GRAHAM, by and through counsel
Adams & Commissiong LLP, alleges upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiff seeks relief for the violation of his
rights secured by the laws of the State of New York; New York
State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth,
Sixth, and Fourteenth Amendments to the United States
Constitution. Plaintiff's claims arise from an incident that
arose on or about February 4, 2017. During the incident, the
City of New York, and members of the New York City Police
Department ("NYPD") subjected plaintiff to, among other things,

excessive force, assault and battery, failure to intervene, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Venue is proper in the Supreme Court of the State of New York, NEW YORK County, because the acts in question occurred in the State of New York, New York County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, New York County.

3. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff Andre Graham is an African American Male, a resident of the State of New York, NEW YORK County.

5. At all times alleged herein, defendants NYPD DET. MOHAMMED RIOS, SHIELD NO 5238; NYPD DET. GUSTAVO ROSADO, SHIELD

NO 29004; and NYPD P.O. JOHN/JANE DOES # 1-10, were New York City Police Officers employed with the Patrol Borough Manhattan North, located in New York County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

6. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

7. On February 4, 2017, at and in the vicinity of 111th Street and Lenox Avenue, New York, New York, several police officers operating from Patrol Borough Manhattan North, including upon information and belief, NYPD DET. MOHAMMED RIOS; NYPD DET. GUSTAVO ROSADO and NYPD P.O. John or Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

8. On February 4, 2017, at approximately 7:45 p.m., at and in the vicinity of 111th Street and Lenox Avenue, the defendants, assaulted and battered and committed excessive force on plaintiff.

9. Plaintiff was walking home from work.

10. Two men grabbed plaintiff and told him to empty his pockets.

11. The men did not identify themselves as police officers, nor did they display anything that could identify them as police officers.

12. The two men were upon information and belief defendants NYPD DET. MOHAMMED RIOS and NYPD DET. GUSTAVO ROSADO.

13. One of defendants NYPD DET. MOHAMMED RIOS or NYPD DET. GUSTAVO ROSADO grabbed plaintiff's right arm, while the other punched plaintiff in the face repeatedly.

14. Officers John/Jane Does # 1-10 arrived.

15. The officers and detectives then forced plaintiff to the ground, and sprayed him with a chemical agent.

16. One of the officers or detectives placed excessively tight handcuffs on plaintiff.

17. Plaintiff requested medical attention, but was not provided medical attention.

18. The officers continued to physically abuse plaintiff.

19. The defendant officers and detectives then forced plaintiff into a van.

20. While plaintiff was handcuffed, defendant NYPD DET. RIOS, punched plaintiff in the left ear repeatedly.

21. Plaintiff continued to request medical treatment and was eventually taken to the hospital in an ambulance.

22. Plaintiff was then taken to central booking.

23. During this time, in order to cover up their illegal actions, the defendant officers, pursuant to a conspiracy, falsely and maliciously told the NEW YORK County District Attorney's Office that plaintiff resisted arrest.

24. The defendants made these false allegations, to cover up the fact that they had committed excessive force on plaintiff, when no force was necessary.

25. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

26. Plaintiff did not resist arrest.

27. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

28. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

29. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

30. Upon information and belief, the unlawful actions against plaintiff were also based on profiling.

FIRST CLAIM

(UNREASONABLE FORCE)

31. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

32. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

33. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

34. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

35. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SECOND CLAIM**(CRUEL AND UNUSUAL PUNISHMENT)**

36. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

37. The aforementioned abuse of plaintiff by the above named defendants was undertaken intentionally, maliciously and sadistically as punching a handcuffed detainee in the ear repeatedly is inherently cruel and unusual.

38. These action taken under color of law, inflicted substantial pain and emotional and physical injuries on Plaintiff, and violated his right to be free from cruel and unusual punishment as guaranteed by the Eighth and Fourteenth Amendments of the United States Constitution.

39. Accordingly, defendants are liable to plaintiff for cruel and unusual punishment, pursuant to 42 U.S.C. § 1983; and the Eighth and Fourteenth Amendments of the United States Constitution.

THIRD CLAIM**(FAILURE TO INTERVENE)**

40. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

41. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

42. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
FEBRUARY 4, 2020

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiff
65 Broadway Suite 1603
New York, New York 10006
212-430-6590
martin@amcmlaw.com
By:



MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

ANDRE GRAHAM,

Plaintiff,

-against-

VERIFICATION

Index No: _____

Date Filed: _____

NYPD DET. MOHAMMED RIOS, SHIELD NO. 5238;
NYPD DET. GUSTAVO ROSADO, SHIELD NO. 29004;
NYPD P.O. JOHN/JANE DOES # 1-10; all of the above
individual defendants, including named are sued in
their individual and official capacities,

Defendants.

----- X

STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to practice law
in the State of New York, hereby affirms pursuant to the C.P.L.R. and
subscribing as true under the penalties of perjury as follows:

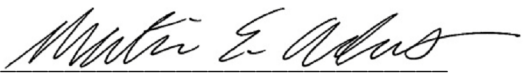
That the Affirmant is a member of the law firm Adams & Commissiong LLP,
the attorneys of record for the plaintiff in the above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to the
matters stated to be alleged upon information and belief, and that as to
those matters he believes them to be true.

That the reason why this verification is made by Affirmant instead of
the plaintiff is because the plaintiff does not reside within the County in
which the firm of Adams & Commissiong LLP maintain their office.

The grounds of Affirmant's belief as to all matters in the complaint
not stated to be upon his knowledge are based upon conversations with
plaintiff, and a review of records related to this action.

DATED: New York, New York
February 4, 2020


MARTIN E. ADAMS, ESQ